

1 Dolan Law Firm is conspiring against him.

2 Plaintiff has tried to paint my client as a
3 liar.

4 My client is not a liar. My client runs a
5 small market here in San Francisco and has run that
6 market for 45 years.

7 My client was scared and confused of
8 Mr. Rosario at the time of the incident at the scene.

9 He claims that he asked my client to call
10 police for 15 minutes.

11 But in that time, Mr. Rosario called his
12 sister and an employee, not 911.

13 He claims that he felt like he was dying at
14 the scene but he refused ambulance transportation to
15 the hospital.

16 As I stated before, this case is simple. My
17 client checked his mirrors, it was clear. He made a
18 legal right turn.

19 It is more likely than not based on the
20 preponderance of the evidence that Plaintiff was
21 traveling the wrong way, he failed to yield to my
22 client who was completing his turn, it was more likely
23 than not that Plaintiff was negligent and caused his
24 own injuries.

25 If after hearing all of the evidence you
26 still don't know who was negligent, then that means
27 that Mr. Rosario did not meet his burden of proof and
28 that it cannot be found that my client was negligent.